

Adhesion contracts, contracts presented on a take-it-or-leave-it basis are not rendered unenforceable without the presence of other factors. Plaintiff ignores the fact that there is an opt-out provision. The presence of a meaningful opportunity to opt out of an arbitration provision can defeat a claim of oppression. (See, e.g., *Circuit City Stores, Inc. v. Mantor* (9th Cir. 2003) 335 F.3d 1101, 1106.) There appears to be no evidence of surprise, oppression, or unfair tactics surrounding the presentation or execution of the Order Agreement and RISC. Plaintiffs sought to purchase the Vehicle and clicked on the purchase button. Plaintiffs conducted the entire transaction in their own personal setting without interference from Defendant. There is no evidence that Plaintiffs were otherwise prevented from reading the Agreement. Thus, Plaintiffs failed to establish procedural unconscionability.

For substantive unconscionability, Plaintiffs argue the clauses are one-sided. However, Plaintiffs fail to point to any provision of the agreements that is one sided. Indeed, both clauses are equally applicable to both parties. Plaintiffs fail to meet their burden by proving unconscionability.

6.

CASE #	CASE NAME	HEARING NAME
CVME2608072	HIRZEL VS MURRIETA VALLEY UNIFIED SCHOOL DISTRICT	PETITION FOR RELIEF FROM GOVERNMENT TORT CLAIM REQUIREMENT

Tentative Ruling: GRANTED; NO OPPOSITION FILED

7.

CASE #	CASE NAME	HEARING NAME
CVSW2403936	GARCIA VS FORD MOTOR COMPANY	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: NOTICE OF NON-OPPOSITION FILED; GRANTED